

HOUSE BILL 2302

By Freeman

AN ACT to amend Tennessee Code Annotated, Title 55,
Chapter 30 and Title 55, Chapter 8, relative to
autonomous vehicles.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 55-8-202(b), is amended by adding the following as a new, appropriately designated subdivision:

() "Autonomous vehicle" means a motor vehicle that uses autonomous technology to drive the vehicle without supervision by a human operator;

SECTION 2. Tennessee Code Annotated, Section 55-8-202, is amended by adding the following as a new subsection (b) and redesignating the existing subsection (b) accordingly:

(1) If a POST-certified or state-commissioned law enforcement officer makes a determination that a traffic offense under this chapter or chapter 9 or 10 of this title has been committed by an autonomous vehicle, then a notice of violation or a citation must be sent by first class mail to the registered owner of the vehicle. A notice of violation or citation mailed to the last known address of the registered owner constitutes valid service. A notice of violation or citation must be sent within twenty (20) business days after the occurrence of the violation, absent exigent circumstances arising from registration irregularities. All notices of violations or citations must have a Tennessee return address and all responses and payments must be made to an address in this state. A notice of violation or citation must allow for payment of the traffic violation or citation within thirty (30) days of the mailing of the notice. No additional penalty or other costs shall be assessed for nonpayment of a traffic violation or citation issued to a registered owner of an autonomous vehicle unless a second notice is sent by first class

mail to the owner and the second notice provides for an additional thirty (30) days for payment of the violation or citation.

(2) The notice of violation or citation must state the amount of the fine that is being assessed for the alleged violation. The notice of violation or citation must state separately any additional fees or court costs that may be assessed if the fine is not paid timely or if the violation or citation is contested and the autonomous vehicle is found to have committed the traffic offense.

(3) The registered owner may elect not to contest the charge and may, in lieu of appearance in court, submit the fine to the address provided on notice of violation or citation.

(4) If the traffic citation is not paid within the time specified by subdivision (b)(1), then additional fees or court costs may be assessed.

(5) If the traffic citation is not paid as provided in this section and the owner appears in court at the time specified, or such later date as may be fixed by the court, and the autonomous vehicle is found to have committed the traffic offense, then additional fees or court costs may be assessed.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.